BRENDAN NGEHSI NEWANFORBI
Plaintiff In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and SHANNON SMITH, an individual,** Defendants.	**Case No. 3:26-cv-07504** **[PROPOSED] PROTECTIVE ORDER RE: CONFIDENTIAL INFORMATION** Judge: Hon. Lisa J. Cisneros Complaint Filed: _____ Trial Date: TBD

WHEREAS Plaintiff and Defendants in this action (collectively, the "Parties") anticipate that discovery will involve the production of confidential and sensitive materials, including but not limited to clinical records, counseling materials, personnel files, proprietary treatment protocols, and information protected by the constitutional and common law right to privacy; and

WHEREAS this action arises from substantially the same nucleus of operative fact as the now-disposed state-court action *Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032 ("State Action"), and the related federal action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004-DJC-JDP ("EDCA Action"); and

WHEREAS the Parties in the State Action entered into a Stipulated Protective Order that was signed by both Parties and entered by the San Joaquin County Superior Court on or about

June 17, 2026, governing the use and disclosure of confidential discovery materials produced in that action; and

WHEREAS the State Action was disposed by order sustaining Defendants' demurrer, and the Stipulated Protective Order in the State Action, by its terms, restricts the use of Confidential Information to "this Litigation" (the State Action) and the EDCA Action, but does not expressly authorize use of those materials in this action; and

WHEREAS federal courts strongly favor allowing the use of discovery materials obtained in related litigation to avoid wasteful duplication of discovery (see Foltz v. State Farm Mut. Auto. Ins. Co., 331 F.3d 1122, 1131 (9th Cir. 2003)), and Plaintiff seeks authorization to use and retain the state-court discovery materials in this action under appropriate protections; and

WHEREAS good cause exists under Federal Rule of Civil Procedure 26(c)(1) for the entry of this Protective Order to protect the confidentiality of sensitive materials produced or to be produced in this action, as well as materials previously produced in the State Action;

NOW, THEREFORE, the Court, having considered the motion of Plaintiff and good cause appearing, **HEREBY ORDERS AS FOLLOWS:**

I. SCOPE OF PROTECTIVE ORDER

A. The protection of this Protective Order may be used with respect to any documents, testimony, information, and things (collectively "materials") produced or created in this action, or previously produced in the State Action or the EDCA Action, that contain Confidential Information. As used herein, the term "Confidential Information" includes testimony and records, including but not limited to discovery responses, whether hardcopy or electronic, that contain

confidential and/or proprietary trade secret information, including, but not limited to: counseling matters; information pertaining to sexual matters; information pertaining to psychological or medical matters; information pertaining to education, training, and selection of employees and staff; information pertaining to individual personnel files of employees and staff; treatment policies, training protocols, and clinical practice guidelines; information pertaining to non-parties subject to protection under the California Constitution or the United States Constitution; and such other information protected by California's constitution and common law right to privacy.

B. As set forth below, materials containing Confidential Information may be designated as "Confidential." Such designation may be made by any Party or non-party producing materials in this action ("Producing Party"), or may be made by a Party who determines, in good faith, that materials produced by a non-party contain Confidential Information ("Designating Party"), even though not so designated by the Producing Party.

C. In the event that additional Parties join or are joined in this litigation, they shall not have access to materials designated as "Confidential" pursuant to this Protective Order until they have executed and, at the request of any Party, filed with the Court their agreement to be bound by this Protective Order, in the form attached as Exhibit 1 hereto.

II. STATE-COURT DISCOVERY MATERIALS

A. All materials designated as "Confidential" that were produced by any party in the State Action (*Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032) are hereby authorized for use in this action, subject to the terms of this Protective Order. Such materials shall retain any "Confidential" designation applied in the State Action and shall be governed by the provisions of this Order.

B. Plaintiff is hereby authorized to retain all materials designated as "Confidential" that

were produced in the State Action, notwithstanding any return-or-destroy provision in the State Action's Stipulated Protective Order, for so long as this action remains pending and for sixty (60) days after its conclusion (as defined in Section IX below). This authorization is without prejudice to any Party's right to seek modification of this provision for good cause shown.

C. Nothing in this Order shall be construed to require Defendants to re-produce in this action any materials that were previously produced in the State Action. Such materials are deemed produced in this action for all purposes upon entry of this Order.

III. DESIGNATION OF MATERIALS AS CONFIDENTIAL

A. "Confidential" materials shall include only such information as the Producing or Designating Party in good faith contends should be protected pursuant to this Protective Order on the grounds that the information is properly subject to protection under existing California or federal law.

B. In making the designation of materials pursuant to this Protective Order, the Producing or Designating Party shall give due consideration to whether the information contained in the materials (1) has been produced, disclosed, or made available to the public in the past; (2) has been published, communicated, or disseminated to others not obligated to maintain the confidentiality of the information contained therein; (3) has not been preserved or maintained in a manner calculated to preserve its confidentiality; or (4) is available from a third party or commercial source that is not obligated to maintain its confidentiality or privacy.

C. The protection of this Protective Order may be invoked with respect to materials in the following manner:

1. Documents when produced or otherwise designated shall bear the clear and legible

designation "Confidential" on each page of the document. Documents produced prior to the entry of this Protective Order may be designated as "Confidential" within thirty (30) days after entry, and documents produced by non-parties may be designated "Confidential" by a Party within thirty (30) days after such production.

2. As to discovery requests or the responses thereto, the pages of such requests or responses containing "Confidential" materials shall be so marked.

3. As to deposition testimony, "Confidential" treatment may be invoked by: (a) declaring the same on the record at the deposition with instructions to so designate the cover of the deposition transcript, or (b) designating specific pages as "Confidential" and serving such designations within thirty (30) days of receipt of the transcript of the deposition in which the designations are made. All deposition testimony shall be treated as "Confidential" pending receipt of a transcript of the deposition.

D. If any Producing Party inadvertently produces or discloses any Confidential Information without marking it with an appropriate legend, the Producing Party or a Designating Party shall promptly notify the receiving party that the information should be treated in accordance with the terms of this Protective Order and shall forward appropriately stamped copies of the items in question. Within five (5) days of the receipt of substitute copies, the receiving party shall return the previously unmarked items and all copies thereof. The inadvertent disclosure shall not be deemed a waiver of confidentiality, and such designation shall be made as soon as possible after the discovery of the inadvertent production or disclosure.

IV. CHALLENGES TO CONFIDENTIAL DESIGNATION

A. Any Party believing materials designated as "Confidential" by another are not entitled to such designation shall notify the Producing or Designating Party of that belief in writing,

provide a brief statement of the basis for that belief with service on all other Parties, and allow ten (10) days for the Producing or Designating Party to respond.

B. If a Producing or Designating Party does not modify its designation of the materials in response to a notice pursuant to paragraph IV.A. of this Protective Order, then the Party challenging the "Confidential" designation may move the Court for an order modifying or removing such designation. To maintain "Confidential" status, the burden shall be on the proponent of confidentiality to show that the material or information is entitled to protection under applicable law. Unless and until a "Confidential" designation is voluntarily withdrawn by the Producing or Designating Party, or the Court issues an order modifying or removing such designation, the provisions of the Protective Order shall continue to apply. Such a motion to remove the "Confidential" designation shall be made at any time before trial, provided that the challenging Party has first engaged in a good-faith meet-and-confer with the Designating Party regarding the disputed designation(s).

V. DISCLOSURE OF MATERIALS DESIGNATED AS CONFIDENTIAL

A. Materials designated "Confidential," as well as summaries, excerpts, and extracts thereof, shall not be disclosed to or made accessible to any person except as specifically permitted by this Protective Order. Materials designated "Confidential" shall be used solely in the preparation for trial and/or trial of this action and shall not be used at any time for any other purpose. Notwithstanding the foregoing, materials designated as "Confidential" may also be used in the action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004-DJC-JDP, subject to compliance with any protective order in that action.

B. Materials designated as "Confidential" may be disclosed only to:

1. The Court, its clerks, and research attorneys;

2. Attorneys actively involved in the representation of a Party, their secretaries, paralegals, legal assistants, and other staff actively involved in assisting in this action;

3. In-house attorneys employed by any Party and working on this action, and their secretaries, paralegals, legal assistants, and other staff actively involved in assisting in this action;

4. The Parties, officers, and employees of the Parties assisting counsel in the preparation of the case for trial, motion practice, or appellate proceedings, provided that the materials designated "Confidential" may be disclosed to such persons only to the extent such disclosure is, in the judgment of counsel, reasonably necessary to counsel's preparation of the case;

5. The insurance carriers for Defendants and their counsel, who provide coverage or potential coverage for claims in this action;

6. Any expert or consultant who is retained by any of the Parties or their counsel of record to assist counsel in this action, and any employee of such an expert assisting in this action (hereafter, "Experts");

7. Any person called to testify as a witness either at a deposition or court proceeding in this action, but only to the extent necessary for the purpose of assisting in the preparation or examination of the witness, and also only if such persons are informed of the terms of this Protective Order, provided with a copy of the Protective Order on the record, and are informed that they are required not to disclose information contained in the materials designated as "Confidential." Witnesses shown Confidential Information are not allowed to retain copies;

8. Deposition and court reporters and their support personnel, for purposes of preparing

transcripts;

9. Employees of outside copying services and other vendors retained by counsel to assist in the copying, imaging, handling, or computerization of documents, but only to the extent necessary to provide such services in connection with this action and only after being informed of the provisions of this Protective Order and agreeing to abide by its terms;

10. Mediators or other Alternative Dispute Resolution neutrals (including their employees, agents, and contractors) to whom disclosure is reasonably necessary to their involvement in this action; and

11. Any person who created a document or was the recipient thereof.

C. Confidential Information may not be disclosed to, or discussed with, any person or entity not specifically outlined in paragraphs V.B.1-11 above, including, but not limited to, the media or on social media, including with newspapers, television, radio stations, or any person in any way associated with such media outlets.

D. Each person to whom Confidential Information is disclosed (other than persons described in paragraphs V.B.1, 7, and 8) shall execute a non-disclosure agreement in the form attached hereto as Exhibit 2 prior to their receipt of the Confidential Information, and shall agree to be bound by this Protective Order and to be subject to the jurisdiction of this Court for the purposes of enforcement. Counsel disclosing Confidential Information to persons required to execute non-disclosure agreements shall retain all such executed agreements. Copies of the executed agreements shall be preserved by counsel and shall be provided to the opposing party if the Court so orders upon a showing of good cause.

VI. USE IN COURT PROCEEDINGS AND FILING OF COURT PAPERS

A. Nothing contained in this Protective Order shall be construed to prejudice any Party's right to use at trial or in any hearing before the Court any Confidential Information, provided that reasonable notice of the intended use of such material shall be given to all counsel of record, in order to enable the Parties to arrange for appropriate safeguards. Likewise, nothing in this Protective Order shall be dispositive of any issues of relevance, discoverability, or admissibility.

B. The submission of any materials designated as "Confidential" pursuant to this Protective Order to the Court must comply with Civil Local Rule 79-5 of the Northern District of California and any other applicable rules regarding the filing of sealed documents. A Party seeking to file Confidential Information under seal shall file an administrative motion to seal in compliance with Civil L.R. 79-5, supported by a declaration establishing that the material is sealable under the applicable legal standard.

C. If materials designated as "Confidential" are submitted in connection with a non-dispositive discovery motion, the Parties may stipulate to the filing of such materials under seal without further order, provided that notice is given to the opposing Party and the materials are lodged with the Court in a sealed envelope or ECF-sealed filing, clearly marked "CONFIDENTIAL MATERIALS LODGED IN SUPPORT OF DISCOVERY MOTION."

D. If either Party seeks to file Confidential Information designated as such by the opposing Party in connection with a dispositive motion, the filing Party must meet and confer with the designating Party at least ten (10) calendar days prior to the intended filing date to offer the designating Party the opportunity to evaluate whether the designation should be maintained, and if so, to prepare the necessary sealing motion under Civil L.R. 79-5.

VII. USE OF CONFIDENTIAL INFORMATION

All Confidential Information (other than information that is publicly available) must be

used by the Party or Parties to whom the Confidential Information is produced solely for the purpose of this action and the related action *Newanforbi v. Derrick et al.*, United States District Court, Eastern District of California, Case No. 2:26-cv-00004-DJC-JDP, and may not be used for any other purpose whatsoever.

VIII. MODIFICATION

Nothing in this Protective Order shall preclude any Party from applying to the Court to modify this Protective Order to provide for additional safeguards to ensure the confidentiality of materials produced in this action or otherwise modify this Protective Order for good cause shown.

IX. DISPOSITION OF MATERIALS AT CONCLUSION OF CASE

The conclusion of an action is defined as thirty (30) days after the expiration of the time to appeal or challenge any final judgment, settlement, or consent decree. All provisions of this Order restricting the communication or use of Confidential Information continue to be binding after the conclusion of this action, unless otherwise agreed or ordered. All materials designated as "Confidential" shall remain in the possession of the counsel of record of the Party to whom such materials are produced, and they shall not permit any such materials to leave their possession, except that copies of such materials may be made for the use of persons to whom disclosure may be made under paragraph V.B. of this Protective Order, or for the purpose of submission to the Court under paragraph VI of this Protective Order.

Within sixty (60) days after the conclusion of this action or the action *Newanforbi v. Derrick et al.*, Case No. 2:26-cv-00004-DJC-JDP, whichever is later, including the expiration or exhaustion of all rights to appeal, each Party to whom Confidential Information was produced shall, at the election of the Producing Party, (a) return all documents and copies containing Confidential Information (including, but not limited to, copies in the possession or control of any

expert or employee) to the Producing Party, or (b) promptly destroy all such materials and copies and provide a written certification under oath to the Producing Party and to any Designating Party to that effect.

X. RETENTION OF JURISDICTION

The Court shall retain jurisdiction over all persons to be bound by the terms of this Protective Order, during the pendency of this action and for such time thereafter as is needed to carry out its terms.

XI. REGULATORY REPORTING AND GOOD-FAITH COMPLAINTS

Nothing in this Order shall prohibit any Party from disclosing Confidential Information to any governmental agency, regulatory body, or professional licensing board with jurisdiction over the conduct, practices, or licensing of any party or non-party in this action within ninety (90) days of the termination of this action, to the extent such disclosure is (a) required by law or regulation, or (b) made in furtherance of a good-faith complaint, report, or request for investigation. Such disclosures shall be accompanied by a request that the receiving agency maintain the confidentiality of the materials to the extent permitted by law.

XII. RELATIONSHIP TO STATE-COURT PROTECTIVE ORDER

This Order supersedes and replaces, as between the Parties to this action, the Stipulated Protective Order entered in the State Action (*Newanforbi v. Palacios et al.*, San Joaquin County Superior Court, Case No. STK-CV-UF-2026-0001032) with respect to all materials that are subject to this Order. To the extent the State Action's Stipulated Protective Order imposed return-or-destroy obligations on Plaintiff with respect to materials produced in that action, such obligations are stayed during the pendency of this action, provided that Plaintiff continues to treat

such materials in accordance with the terms of this Order. Upon the conclusion of this action, the disposition of such materials shall be governed by Section IX of this Order.

IT IS SO ORDERED.

Dated: _____

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UNITED STATES DISTRICT JUDGE